

2:00 PM LINE 4

24-CIV-03310

SCHNEIDER ELECTRIC BUILDINGS AMERICAS, INC. VS. CALIFORNIA UNITED MECHANICAL, INC., ET AL

SCHNEIDER ELECTRIC BUILDINGS AMERICAS, INC.
CALIFORNIA UNITED MECHANICAL, INC.

KEVIN T CAULEY
EMMA B LLOYD

Plaintiff's Motion for Leave to File a DOE Amendment

TENTATIVE RULING:

For the following reasons, Plaintiff Schneider Electric Buildings Americas, Inc.'s motion for leave to file a Doe amendment substituting BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, for Doe 6 is **GRANTED**.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on proper terms, to permit amendment of a pleading. Section 576 similarly permits amendment of a pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047-1048; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to permit the amendment and allow the opposing party to challenge the pleading by demurrer, motion for judgment on the pleadings, or another appropriate procedure. (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.)

DISCUSSION

Plaintiff's original complaint named Doe defendants, and there remain disputed issues concerning Plaintiff's actual knowledge of BMR's identity when the action was commenced, as well as the legal effect of the undisputed entity conversion history. (See *Grinnell Fire Protection Systems Co. v. American Savings & Loan Assn.* (1986) 183 Cal.App.3d 352.) The Court does **not**, by granting leave to amend, determine that the amendment relates back to the filing of the original complaint, that Plaintiff satisfied Civil Code section 8460, or that the mechanic's lien is otherwise enforceable. BMR's defenses under Civil Code section 8460, Code of Civil Procedure section 474, the statute of limitations, and its pending motion for summary adjudication are expressly preserved. BMR's general appearance establishes that it became a party to the action, but the Court does not determine on this motion the date to which claims against BMR relate back for limitations purposes. (See *Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135.)

California law favors liberal amendment of pleadings, and on the present record the Court cannot conclude that the proposed amendment is futile as a matter of law.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 5

24-CIV-07029 SEAN LIU, ET AL VS. WEI MING TOH, ET AL

SEAN LIU
WEI MING TOH

MICHAEL MENGARELLI
KORY L. PHILLIPS

Plaintiffs' Motion for Leave to File First Amended Complaint

TENTATIVE RULING:

Plaintiffs Sean Liu and Casey Harmon's Motion for Leave to File a First Amended Complaint is ruled on as follows:

First, the notice of motion lists an incorrect address for the hearing. (See Cal. Rules of Court, rule 3.1110.) The hearing will be held in Department 2, Courtroom K, at 1050 Mission Road, South San Francisco, California.

Second, the proof of electronic service of the motion and supporting papers fails to state "[t]he electronic service address ... of the person making the electronic service," as required by Code of Civil Procedure section 1013b, subdivision (b)(1). If, by the time of the hearing, Plaintiffs file an amended proof of service that fully complies with section 1013b, the Court intends to **GRANT** leave to file the proposed First Amended Complaint. If an amended proof is filed, counsel for Plaintiffs shall appear at the hearing and notify the Court.

The parties are advised that future proposed amendments should first be pursued by stipulation when reasonably possible, and only genuinely disputed amendments should require a noticed motion. An unreasonable refusal to stipulate to a readily curable amendment may support sanctions in an appropriate case. (See *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, 649-650.)
